PETITION - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

IN THE ..... COURT
(The court with jurisdiction over the offence for which the person was arrested, filed through its clerk - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION OF AN ARREST RECORD WHERE THE COURT HAS NO HISTORY OF THE ARREST, T.C.A. Sec. 40-32-109

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-109; T.C.A. Sec. 40-32-109(a); T.C.A. Sec. 40-32-109(b); T.C.A. Sec. 40-32-109(c); T.C.A. Sec. 40-32-109(d); T.C.A. Sec. 40-32-109(e); T.C.A. Sec. 40-32-109(f); T.C.A. Sec. 40-32-102(c)(1); T.C.A. Sec. 40-32-110; T.C.A. Sec. 8-21-401 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Expunction of the arrest record, with the Sec. 40-32-110 effect expressly applied by Sec. 40-32-109(f): the petitioner is entitled to have all public records destroyed, is restored in contemplation of law to the status occupied before the arrest, must not suffer adverse effects or collateral disabilities by virtue of the offence, and is not guilty of perjury for failing to acknowledge the arrest in response to any inquiry. A person whose arrest record exists but for whom the court with jurisdiction over the offence for which the person was arrested has no history of the arrest within the court's records. This is the participant whose arrest never produced a court file - the case that the Sec. 40-32-106 route cannot reach, because that route runs to the court having jurisdiction in the previous action and here there is no previous action in that court's records. This is the only one of the four additions that does NOT run through Sec. 40-32-108, and it is the only Tennessee route in the entire chapter on which the participant writes the operative petition. Section 40-32-109 contains no cross-reference to Sec. 40-32-108 of any kind, so Sec. 40-32-108(e) - under which the office of the district attorney general must prepare the petition and proposed order - does not reach it. It also carries no waiting period, no 61-day pre-order clock, no rebuttable presumption and no two-year refiling bar, all of which live in Sec. 40-32-108 alone. Section 40-32-109(a) uses the permissive 'may petition', where Sec. 40-32-108(a) uses 'shall petition'. Codified through Public Chapter 608. Untouched by Public Chapters 719, 930 and 1061. Six subsections, (a) through (f), with no further subdivision numbering.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - arrest offence and agency] What were you arrested for, and which agency arrested you?
.....
.....

[C2 - arrest date] What is the date of the arrest?
.....
.....

[C3 - county and court] In which county did the arrest happen, and which court would have had jurisdiction over that offence?
.....
.....

[C4 - ever arraigned or appeared] Were you ever arraigned, did you ever appear in court, and were you ever given a court date or a case number for this arrest?
.....
.....

[C5 - court file exists] As far as you know, does any court file or court case exist for this arrest?
.....
.....

[C6 - state control number] What is the state control number on your TBI criminal history, and what does that history show about this arrest?
.....
.....

[C7 - disposition that court recorded] Did this arrest end in a dismissal, a no true bill, a nolle prosequi, an acquittal, or a release without charge that the court actually recorded? If it did, the free Sec. 40-32-106 route is the right one instead.
.....
.....

[C8 - evidence of absence] Is there anything you can file that bears on there being no court record - a letter from a clerk, a records search result, anything else?
(Asked because Sec. 40-32-109(b) permits the petitioner to file evidence, not because anything is required.)
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-109; T.C.A. Sec. 40-32-109(a); T.C.A. Sec. 40-32-109(b); T.C.A. Sec. 40-32-109(c); T.C.A. Sec. 40-32-109(d); T.C.A. Sec. 40-32-109(e); T.C.A. Sec. 40-32-109(f); T.C.A. Sec. 40-32-102(c)(1); T.C.A. Sec. 40-32-110; T.C.A. Sec. 8-21-401.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
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CLERK SEARCH AND CERTIFICATION INSTRUCTIONS - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the clerk search and certification instructions component prescribed by the committed route contract.

CLERK SEARCH AND CERTIFICATION DIRECTIONS

- The court with jurisdiction over the offence for which the person was arrested, filed through its clerk
- The court with jurisdiction over the offence for which the person was arrested, per Sec. 40-32-109(a). The section states that forum inside the eligibility clause rather than as a standalone filing directive, and supplies it by implication: it is the court whose records the clerk searches under (c) and whose clerk serves the district attorney general under (a). Service is on the district attorney general for that judicial district, which is the only express geographic anchor. There is no residence-based venue and no alternative forum.
- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

FEE DISCLOSURE - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the fee disclosure component prescribed by the committed route contract.

ROUTE DIRECTIONS

- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of an arrest record where the court has no history of the arrest, T.C.A. Sec. 40-32-109.

Expunction of the arrest record, with the Sec. 40-32-110 effect expressly applied by Sec. 40-32-109(f): the petitioner is entitled to have all public records destroyed, is restored in contemplation of law to the status occupied before the arrest, must not suffer adverse effects or collateral disabilities by virtue of the offence, and is not guilty of perjury for failing to acknowledge the arrest in response to any inquiry. A person whose arrest record exists but for whom the court with jurisdiction over the offence for which the person was arrested has no history of the arrest within the court's records. This is the participant whose arrest never produced a court file - the case that the Sec. 40-32-106 route cannot reach, because that route runs to the court having jurisdiction in the previous action and here there is no previous action in that court's records. This is the only one of the four additions that does NOT run through Sec. 40-32-108, and it is the only Tennessee route in the entire chapter on which the participant writes the operative petition. Section 40-32-109 contains no cross-reference to Sec. 40-32-108 of any kind, so Sec. 40-32-108(e) - under which the office of the district attorney general must prepare the petition and proposed order - does not reach it. It also carries no waiting period, no 61-day pre-order clock, no rebuttable presumption and no two-year refiling bar, all of which live in Sec. 40-32-108 alone. Section 40-32-109(a) uses the permissive 'may petition', where Sec. 40-32-108(a) uses 'shall petition'. Codified through Public Chapter 608. Untouched by Public Chapters 719, 930 and 1061. Six subsections, (a) through (f), with no further subdivision numbering.

WHERE IT GOES

The court with jurisdiction over the offence for which the person was arrested, filed through its clerk Upon filing, the clerk serves the petition on the district attorney general for that judicial district. Both the petitioner and the district attorney general may file evidence. The clerk's office searches the court's records and certifies to the court whether there is any history of the arrest. The court reviews the clerk's certification and all evidence, and may enter the order if it finds there is no history of the arrest within the court's record. The petition on this route is the participant's own operative statutory petition, not a request to another office: Sec. 40-32-109 contains no cross-reference to Sec. 40-32-108, so the district-attorney preparation duty at Sec. 40-32-108(e) does not govern here. The clerk's certification under (c) and the court's order under (d) remain instruments of their own actors and neither is generated or pre-completed. Venue: The court with jurisdiction over the offence for which the person was arrested, per Sec. 40-32-109(a). The section states that forum inside the eligibility clause rather than as a standalone filing directive, and supplies it by implication: it is the court whose records the clerk searches under (c) and whose clerk serves the district attorney general under (a). Service is on the district attorney general for that judicial district, which is the only express geographic anchor. There is no residence-based venue and no alternative forum.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies and is mandatory. Section 40-32-109(e) provides that a person petitioning the court for expunction pursuant to the section must be charged the appropriate clerk's fee pursuant to T.C.A. Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. This is the material difference from the Sec. 40-32-106 route, which is free. Fee waiver as recorded: None established. Section 40-32-109 contains no indigency, waiver or without-cost provision, in express contrast to Sec. 40-32-106(a)(1). Whether any general court-cost waiver reaches it was not established and none is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general for that judicial district on filing. Both the petitioner and the district attorney general may file evidence with the court under Sec. 40-32-109(b).

WHAT THE RECORD SAYS YOU MUST KNOW

- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The court does in fact have a record of the arrest. That takes the participant out of this route entirely and into the Sec. 40-32-106 analysis, which is the free route; the participant is redirected there rather than handed off.
- The district attorney general files evidence that the court does have a history of the arrest. That converts the matter into a contested question of fact and the participant is handed off to an attorney.
- Whether a prior court action or court file ever existed is disputed. LegalEase does not adjudicate that question: the clerk searches and certifies and the court finds, so a disputed history is handed off to an attorney.
- The participant cannot establish from the TBI criminal history that an arrest record exists at all. The participant is directed back to the TBI before the route reopens.
- The participant is seeking relief for a case that reached the court and was dismissed, no-true-billed, nolle prossed or acquitted. That is the free Sec. 40-32-106 route and the participant is redirected to it rather than paying here.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- The clerk's office searches the court's records and certifies to the court whether there is any history of the arrest. That certification is a clerk instrument, it is filed either way because it certifies whether there is any

history, and it is never generated, pre-completed or predicted. The district attorney general is served by the clerk and may file evidence under (b). The court reviews and decides, and the grant is discretionary.

THE PAGES IN THIS SET

- tn_arrest_no_court_record-petition-1: the composed petition, on this route's own statutory ground (Clear an arrest that never reached a courtroom)